



SENATE (ELECTION) (AMENDMENT) ORDINANCE, 2002

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Contents

	PREAMBLE
1	SHORT TITLE AND COMMENCEMENT
2	AMENDMENT OF SECTION 2, ACT LI OF 1975
3	AMENDMENT OF SECTION 11, ACT LI OF 1975
4	AMENDMENT OF SECTION 13, ACT LI OF 1975
5	AMENDMENT OF SECTION 24, ACT LI OF 1975
6	SUBSTITUTION OF SECTION 25, ACT LI OF 1975
7	INSERTION OF NEW SECTION 25-A, ACT LI OF 1975
8	AMENDMENT OF SECTION 28, ACT LI OF 1975
9	AMENDMENT OF SECTION 29, ACT LI OF 1975
10	AMENDMENT OF SECTION 43, ACT LI OF 1975
11	AMENDMENT OF SECTION 48, ACT LI OF 1975
12	INSERTION OF NEW SECTION 56-A, ACT LI OF 1975
13	AMENDMENT OF SECTION 58, ACT LI OF 1975
14	AMENDMENT OF SECTION 62, ACT LI OF 1975
15	AMENDMENT OF SECTION 63, ACT LI OF 1975
16	AMENDMENT OF SECTION 74, ACT LI OF 1975
17	INSERTION OF NEW SECTION 75-A, ACT LI OF 1975
18	AMENDMENT OF SECTION 78, ACT LI OF 1975

SENATE (ELECTION) (AMENDMENT) ORDINANCE, 2002
ORDINANCE L OF 2002

An Ordinance further to amend the Senate (Election) Act, 1975

WHEREAS it is expedient further to amend the Senate (Election) Act, 1975 (LI of 1975), for the purposes hereinafter appearing;

AND WHEREAS, the President is satisfied that the matter required immediate action;

NOW, THEREFORE, to pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, the Provisional Constitution Order No. 1 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:--

1. Short title and commencement.-(1) This Ordinance may be called the Senate (Election) (Amendment) Ordinance, 2002.

(2) It shall come into force at once.

2. Amendment of section 2, Act LI of 1975. In the Senate (Election) Act, 1975 (LI of 1975), hereinafter referred to as the said Act, in section 2, after clause (c), the following new clauses shall be inserted, namely:-

"(cc) "Commission" means the Election Commission;

"(ccc) "Commissioner" means the Chief Election Commissioner:"

3. Amendment of section 11, Act LI of 1975. In the said Act, in section 11,-

(a) for subsection (2), the following shall be substituted namely:

"(2) Every nomination shall be made by a separate nomination paper in the prescribed form signed both by the proposer and the seconder and shall, on solemn affirmation made and signed by the candidate, accompany-

(a) a declaration that he has consented to the nomination and that he fulfils the qualifications specified in Article 62 of the Constitution and is not subject to any of the disqualifications specified in Article 63 thereof or any other law for the time being in force for being elected as a member;

(b) a declaration about his party affiliation, if any;

(c) a declaration that no loan for an amount of two million rupees or more, obtained from any bank, financial institution, cooperative society or corporate body in his own name or in the name of his spouse or any of his dependents, or any business concern mainly owned by him or the aforesaid; stands unpaid for more than one-year from the due date, or has got such loan written off:

(d) a declaration that he, his spouse or any of his dependents or a business concern mainly owned by him or the aforesaid, is not in default in payment of Government dues or utility charges, including telephone, electricity, gas and water charges of an amount in excess of ten thousand rupees, for over six months, at the time of filing of nomination papers:

(e) a statement specifying his educational qualifications, occupation, National Identity Card number and National Tax number, if any, alongwithattested copies thereof; and

- (f) a statement of his assets and liabilities and those of his spouse and dependents on the prescribed form as on the preceding thirtieth day of June;

Explanation.--For the purpose of this section, the expression,-

- (i) "loan" shall mean any loan, advance, credit or finance obtained or written off on or after the 31st day of December, 1985, but shall not include the loan the recovery of which has been stayed or suspended by any order of a Court or Tribunal including the High Court and the Supreme Court;
- (ii) "mainly owned" shall mean holding or controlling a majority interest in a business concern;
- (iii) "taxes" include all taxes levied by Federal Government, Provincial Government or a Local Government, but shall not include taxes that recovery of which has been stayed or suspended by any order of a Court
- (iv) "Government dues and utility charges" shall, inter alia, include rent, charges of rest houses or lodges owned by the Federal Government, Provincial Governments, local Governments or Corporations established or controlled by such Governments, but shall not include the Government dues and utilities charges the recovery of which has been stayed or suspended by any order-of a Court or Tribunal; and

(b) after sub-section (5), the following new subsection shall be added, namely:

"(6) The nomination form and accompanying declarations and statements shall be open to inspection by the public, and copies thereof may be made available by the Commission in such manner and on payment of such fee as may be prescribed."

4. Amendment of section 13, Act LI of 1975. In the said Act, in section 13,-

- (a) in sub-section (3), in clause (c) after the words "complied with", the words "or +submits any false or incorrect declaration or statement in any material particular" shall be added: |
- (b) after subsection (3), amended as aforesaid, the following new subsection shall be inserted, namely:--

"(3A) The Returning Officer may, for the purpose of scrutiny, require any agency or authority to produce any document or record.

(3B) Notwithstanding anything contained in subsection (3), where a candidate deposits any amount of loan, tax or utility charges payable by him before rejection of his nomination paper on the ground of default in payment of such loan, taxes or utility charges, such nomination paper shall not be rejected for default thereof.";

(c) in sub-section (5);

- (i) after the word "Commissioner", occurring for the first time, the words "or a member of the Commission authorized by the Commissioner" shall be inserted;
- (ii) after the word "Commissioner", occurring for the second time, the words and commas "or such member, as the case may be," shall be inserted;
- (iii) for the full stop at the end a colon shall be substituted and thereafter the following proviso shall be added, namely:

"Provided that where a nomination paper is rejected by the Returning Officer on the ground that the candidate is a defaulter of loan or taxes or Government dues or utility charges or has had the loan written off and the candidate pays such loan or, as the case may be, taxes, Government dues or utility charges or the written off loan on or before the last date fixed for disposal of appeals

and satisfies the Member of the Election Commission that such payment has been made, his nomination shall be treated as having been accepted on that ground "; and

(d) after sub-section (5), amended as aforesaid the following new subsection shall be added, namely:--

"(6) If the member of the Commission referred to in subsection (5), is, on the basis of information or material coming to his knowledge from any source, satisfied that a candidate whose nomination paper has been accepted is--

(a) a defaulter loans, taxes, Government dues or utility charges or has had any loan written off or is subject to any other disqualification from being elected as a member of Senate, he may, on his own motion, call upon such candidate to show cause why his nomination should not be rejected, and if he is satisfied that the candidate is defaulter as aforesaid or has had a loan written off or is subject to any disqualification, he may reject his nomination paper. "

5. Amendment of section 24, Act LI of 1975. In the said Act, in section 24, after subsection (2) the following new subsection shall be added, namely:-

"(3) Every returned candidate shall, within five days from the date of election, submit return of election expenses in accordance with the provisions of section 29."

6. Substitution of section 25, Act LI of 1975. In the said Act, for section 25; the following shall be substituted, namely:

"25. Declaration of result of election. On receipt of the returns of the election under sub-section (3) of section 24, the Commission shall publish in the official Gazelle the names of the returned candidates:

Provided that the name of a candidate shall not be published who fails to submit the return of election expenses as required by subsection (3) of section 24."

7. Insertion of new section 25-A, Act LI of 1975. In the said Act, after section 25, substituted as aforesaid, the following new section shall be inserted, namely:-

"25-A. Yearly submission of statements of assets and liabilities.-(1) Every member shall, in the prescribed form, submit a statement of assets and liabilities of iris own; his spouse and dependents annually to the Commissioner by the thirtieth, day of September each year.

(2) The statements of assets and liabilities submitted under sub-section (1) shall be published in the Official Gazette and copies thereof can be obtained on payment of prescribed fee.

(3) The Commission shall, by the fifteenth day of October each year, notify the names of the members who fail to file statements of assets and liabilities within the period specified in sub-section (1) and, by an order, direct that such member shall cease to function till such statement is submitted.

(4) where a member submits the statement of assets and liabilities under sub-section (1) which is found to be false in material particulars, he may be proceeded under section 62 for committing the offence of corrupt practice."

8. Amendment of section 28, Act LI of 1975. In the said Act, in section 28:-

(a) in sub-section (3), for the word "five" the word "one million and five hundred" shall be substituted; and

(b) after sub-section (3), amended as aforesaid, the following new subsection shall be added, namely:-

"(4) A candidate shall, by a statement, explain the particulars of any election expenses supported by receipts and voucher of payments made thereof, except where the amount is less than five hundred rupees."

9. Amendment of section 29, Act LI of 1975. In the said Act, in section 29, in sub-section (1), after the words "contesting candidate", the commas and words "other than a returned candidate," shall be inserted.

10. Amendment of section 43, Act LI of 1975. In the said Act, in section 43 in sub-section (2), for the words comma, figures, brackets and letter "Evidence Act, 1872 (I of 1872)" the words comma, figures, brackets and letters "Qanun-e-Shahadat Order, 1984 (P. O. No .10 of 1984)" shall be substituted.

11. Amendment of section 48, Act LI of 1975. In the said Act, in section 48, after subsection (1), the following new subsection shall be inserted, namely:-

"(1A) The trial of the election petition shall proceed day to day and the decision thereof shall be taken by the Tribunal within four months from the date of its receipt from the Commissioner:

Provided that where the delay in the proceedings is occasioned by any act or omission of a returned candidate or any other person acting on his behalf, the Tribunal may refer to the Commission that such candidate may be declared to have ceased to perform the functions of his office either till the conclusion of the proceedings or for such period as the Commission may direct."

12. Insertion of new section 56-A, Act LI of 1975. In the said Act after section 56, the following new section shall be inserted, namely:-

"56-A. Additional Powers of the Tribunal.--(1) If a Tribunal is, on the basis of any material coming to its knowledge from any source or an information laid before it, of the opinion that a returned candidate was a defaulter of loan, taxes, Government dues or utility charges, or, has submitted a false or incorrect declaration regarding the payment of loans, taxes, Government dues or utility charges, or has submitted a false or incorrect statement or assets and liabilities of his own, spouse and dependents, under section 11, it may, its own motion or otherwise, call upon any such candidate to show cause why his election should not be declared void and, if it is satisfied that such candidate is a defaulter or has submitted false or incorrect declaration as aforesaid, it may, without prejudice to any order that may be, or has been, made on an election petition, or any other punishment, penalty or liability which such candidate may have incurred under this Act or under any other law for the time being in force, make an order-

(i) declaring the election of the returned candidate to be void; or

(ii) declaring the election of the returned candidate to be void and any other contesting candidate to have been duly elected.

(2) If on examining the material or information referred to in sub-section (1), a Tribunal finds that there appear reasonable grounds for believing that a returned candidate is a defaulter or has submitted false or incorrect declaration referred to in sub-section (1), it may, pending decision of

the motion under sub-section (1), direct that the result of the returned candidate shall not be published in the official Gazette.

(3) No order under sub-section (1) or subsection (2) shall be made unless the returned candidate has been provided an opportunity or being heard."

13. Amendment of section 58, Act LI of 1975. In the said Act, in section 58, after clause (a) the following new clause shall be inserted, namely:-

"(aa) files a false or incorrect declaration or statement under sub-section (2) of section (11),".

14. Amendment of section 62, Act LI of 1975. In the said Act, in section 62,-

(i) for the words "two years" the words "five years" shall be substituted; and

(ii) for the words "five thousand rupees" the words "one hundred thousand rupees" shall be substituted.

15. Amendment of section 63, Act LI of 1975. In the said Act, in section 63, in sub-section (2), for the words "fine which may extend to two thousand rupees" the words "imprisonment for a term which may extend to six months and fine which may extend to five thousand rupees shall be substituted.

16. Amendment of section 74, Act LI of 1975. In the said Act, in section 74, shall be re-numbered as sub-section (1) of that section and after subsection, (1) re-numbered as aforesaid, the following new subsections shall be added, namely:-

"(2) Notwithstanding anything contained in this Act or any other law for the time being in force the offences of corrupt practice shall be tried by the Sessions Judge and appeal against his order shall lie before a Division Bench of the High Court.

(3) Where a proceeding against a person for being involved in corrupt practice is initiated on a complaint made by a private individual, and such person is convicted by the Court and his conviction is maintained in final appeal, the complainant may be entitled to such reward payable out of the amount of fine as may be imposed by the Court:

Provided that where such complaint, proves to be false, mala fide, or is made for any ulterior motive to provide benefit to another person, the complainant shall be punishable with imprisonment for a term which may extend to three years, or with fine, or with both."

17. Insertion of new section 75-A, Act LI of 1975. In the said Act, after section 75, the following new section shall be inserted, namely:-

"75-A. **Court proceeding relating to election expenses.** The Commissioner shall direct the Returning Officer to initiate proceeding in the appropriate Court against the person, who contravenes the provisions of section 28 or fails to comply with the provisions of section 29."

18. Amendment of section 78, Act LI of 1975. In the said Act, in section 78, for clauses (a) to (f) the following shall be substituted, namely:-

(a) he is of unsound mind and has been so declared by a competent Court, or

(b) he is an un-discharged insolvent, or

(c) he ceases to be a citizen of Pakistan, or acquires the citizenship of a foreign State; or

- (d) he holds an office of profit in the service of Pakistan other than an office declared by law not to disqualify its holder; or
- (e) he is in the service of any statutory body or anybody which is owned or controlled by the Government or in which the Government has a controlling share or interests; or
- (f) he being a citizen of Pakistan by virtue of section 14B of the Pakistan Citizenship Act, 1951 (II of 1951), he is for the time being disqualified under any law in force in Azad Jammu and Kashmir from being elected as a member of the Legislative Assembly of Azad Jammu and Kashmir; or
- (g) he is propagating any opinion, or acting in any manner, prejudicial to the ideology of Pakistan, or the sovereignty, integrity or security of Pakistan, or morality or the maintenance of public order, or the integrity or independence of the Judiciary or Pakistan, or which defames or brings into ridicule the judiciary or the Armed Forces of Pakistan; or
- (h) he has been convicted by a Court of competent jurisdiction on a charge of Corrupt practice, moral turpitude or misuse of power or authority, under any law for the time being in force; or
- (i) he has been dismissed from the service of Pakistan or service of a corporation or office set up or controlled by the Federal Government, Provincial Government or a local Government on the grounds of misconduct involving moral turpitude; or
- (j) he has been removed or compulsorily retired from the service of Pakistan or service of a corporation or office set up or controlled by the Federal Government, Provincial Government or a local Government on the grounds of misconduct involving moral turpitude: or
- (k) he has been in the service of Pakistan or of any statutory body or anybody which is owned or controlled by the Government or in which the Government has a controlling share of interest, unless a period of two years has elapsed since he ceased to be in such service; or
- (l) he, whether by himself, or by any person or body of persons in trust for him or for his benefit or on his account or as a member of a Hindu undivided family, has any share or interest in a contract, not being a contract between a Cooperative Society and Government for the supply of goods to or for the execution of any contract or for the performance of any service undertaken by Government:

Provided that the disqualification under this paragraph shall not apply to a person—

- (i) where the share or interest in the contract devolves on him by inheritance or succession or as a legatee, executor or administrator, until the expiration of six months after it has so devolved on him;
- (ii) where the contract has been entered into by or on behalf of a public company as defined in the Companies Ordinance, 1984 (XLVII of 1984), of which he is a shareholder but is not a director holding an office of profit under the company; or
- (iii) where he is a member of a Hindu undivided family and the contract has been entered into by any other member of that family in the course of carrying on a separate business in which he has no share or interests; or

Explanation.—In this Article "goods" does not include agricultural produce or commodity grown or produced by him or such goods as he is under any directive of Government or any law for the time being in force, under a duty or obligation to supply.

(m) he holds any office of profit in the service of Pakistan other than the following offices namely:--

(i) an office which is not whole time office remunerated either by salary or by fee;

(ii) the office of Lumbardar, whether called by this or any other title;

(iii) the Qaumi Razakars;

(iv) any office the holder whereof, by virtue of such office, is liable to be called up for military training or military service under any law providing for the Constitution or raising of a Force: or

(n) he has been convicted and sentenced to imprisonment for having absconded by a competent Court under any law for the time being in force: or

(o) he has obtained a loan for an amount of two million rupees or more, from any bank, financial institution, cooperative society or cooperative body in his own name or in the name of his spouse or any of his dependents, which stands unpaid for ore than one year from the due date or has had such loan written off; or

(p) he or his spouse or any of his dependents has defaulted in payment of Government dues and utility charges, including telephone electricity, gas and water charges of an amount in excess of ten thousand rupees, for over six months; or

(q) he is for the time being disqualified from being elected or chosen as a member of the Majlis-e-Shoora (Parliament) or of a Provincial Assembly under the Constitution or any law for the time being in force."
